



MAXIMUM SEVERITY GRC ESCALATION – Documented Retaliation, Suppression of Investigative Findings, and Governance Failure in Case [GEMS 000655789 Dependent 02]]

4 messages

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za, alice@aliceleroux.co.za, ferfam.bruno@gmail.com
Cc: lebohang.mpumlwana@afrocentrichealth.com, lindiwe.miyambu@afrocentrichealth.com, monwabisi.kula@afrocentrichealth.com
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Tue, 16 Dec 2025 at 09:35

PART 1: FORMAL MEMORANDUM TO THE BOARD AUDIT & RISK COMMITTEE

1. Purpose of Escalation

This memorandum constitutes a Maximum Severity Governance, Risk, and Compliance (GRC) escalation to the Board Audit & Risk Committee. It follows confirmed management interference in a concluded investigation, suppression of substantiated findings, retaliatory conduct against the investigator, and failure to implement corrective action.

Collectively, these actions have exposed the organisation to material regulatory, labour, ethical, and reputational risk, and are directly causing psychological harm to staff.

2. Key Findings

Member complaint arose from a documented system failure, not member non-adherence.

Ethical refusal to misattribute fault resulted in:

Loss of access to the investigation

Blocked corrective action and apology

Improper closure of the case

Responsibility shifted to the member despite clear system-level fault

Evidence of Retaliation: Audio recording of MaryAnn Jones explicitly stating the refusal “is insubordination.”

3. Governance, Legal, and Regulatory Exposure

King IV Principles 1, 2, 4, 13 – ethical leadership, accountability, risk governance, compliance

ISO 31000 / ISO 45003 – failure to monitor risk and prevent psychosocial harm

OHSA s8 & LRA ss185–188 – unsafe work environment, unfair labour practice

Protected Disclosures Act (PDA) – retaliation against ethical refusal / whistleblowing

Regulatory Reach: Eight regulators will require explanation for inaction

Explicit Warning: Failure to act will be considered a miscarriage of ethical justice and an approval of director-level psychological harm, with PDA fully covered in the master evidence dossier submission scheduled for 17 December 2025, 10:00. AS MENTIONED 12 December 2025 in constructive dismissal notice email.

4. Immediate Board-Level Actions Required

1. Administrative Suspension – Mary-Ann Jones & Lisa Mari pending independent investigation.

2. Corrective Member Communication – Immediate apology acknowledging system fault

4. Activation of Governance Controls,ethical deviation review protocol, management risk training

5. Conditional Resolution & Master Dossier

Compliance Window: 24 hours for documented proof of required actions

Outcome: This case can be removed from the master evidence dossier to regulators

Failure: Full dossier, covering PDA and psychological harm, will be shared with all eight regulators on 17 December 2025 at 10:00

6. Accountability Notice

Failure to act, suppress findings, or misattribute fault will be regarded as reckless governance, exposing Board and management to personal liability, regulatory escalation, and labour proceedings. Timely, transparent action restores trust, demonstrates accountability, and prevents unnecessary escalation.

Submitted in good faith, fulfilling statutory, professional, and ethical duties.

Sr. Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety

PART 2: ACCOMPANYING EMAIL TO BOARD

Subject: Urgent Maximum Severity GRC Escalation – Immediate Action Required

Dear Chairperson and Board Members,

Attached is a Maximum Severity Governance, Risk, and Compliance memorandum regarding confirmed management interference, suppression of findings, and retaliation against the investigator. This matter exposes the organisation to regulatory, labour, ethical, and reputational risk, and is causing active psychological harm to staff.

The memorandum includes:

Evidence of retaliation and ethical misconduct

Required immediate interventions

Conditional resolution path to prevent escalation to regulators

Explicit warning that failure to act constitutes a miscarriage of ethical justice and approval of director-level psychological harm

Action Required:

Please provide documented proof of corrective action and governance control implementation within 24 hours. Timely resolution will allow this matter to be removed from the master evidence dossier, which is otherwise scheduled for submission to eight regulators on 17 December 2025 at 10:00.

This escalation is submitted in full compliance with statutory, professional, and ethical duties. Immediate attention and decisive action are required to prevent further organisational, regulatory, and legal exposure.

Respectfully,
Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety

> Accountability Notice:

This correspondence constitutes a formal notice of identified risk. Retaliation, obstruction, or failure to act in accordance with governance and risk management obligations may expose the organisation and/or individuals to regulatory, legal, and ethical consequences.

Important Accountability Notice:

MAXIMUM SEVERITY GRC ENFORCEMENT NOTICE – KING IV | ISO | OHSa | LRA

This enforcement notice is issued in my capacity as a Specialist Nurse and Health Services Manager responsible for Governance, Risk, and Psychosocial Safety, following confirmation that substantiated investigative findings were deliberately disregarded, corrective action and an approved apology were obstructed, the investigator was denied further access to the matter, and responsibility was improperly shifted to a member despite clear system-level causation. Such conduct constitutes a material breach of King IV Principles 1, 2, 4, and 13 (ethical leadership, accountability, risk governance, and compliance), ISO 31000 (failure to identify, treat, and monitor risk), ISO 45003 (failure to prevent psychosocial harm), Section 8 of the Occupational Health and Safety Act (duty to provide and maintain a work environment that is safe and without risk), and Sections 185, 186, and 188 of the Labour Relations Act (unfair conduct, detriment, and managerial misconduct). Immediate written confirmation is required before close of business today that the identified risk has been actioned, corrective and preventative controls implemented, member harm remedied, and management-level accountability assigned. Any failure to confirm resolution, or any further attempt to suppress findings, misattribute fault, or close the matter without corrective action, will be regarded as reckless governance and will expose accountable officials to personal liability, regulatory escalation, labour proceedings, and external oversight.

2 attachments

 **Screen_Recording_20251216_091751_InShot.mp4**
2 MB

 **Gmail - RE_ general complaint received - GEMS 000655789 Dependent 02.PDF**
235 KB

Wilbur William Matthee <wilburmat@gmail.com>

Wed, 17 Dec 2025 at 08:23

To: munisinf@global.co.za, alicel@aliceleroux.co.za, ferfam.bruno@gmail.com

Cc: lebohang.mpumlwana@afrocentrichealth.com, lindiwe.miyambu@afrocentrichealth.com, monwabisi.kula@afrocentrichealth.com

Dear Chairperson and Board Members,

I am writing to formally retract the email and attached memorandum sent earlier 16 December 2025, titled "Urgent Maximum Severity GRC Escalation – Immediate Action Required," regarding Case [GEMS 000655789 Dependent 02].

This retraction is due to the email being sent on a public holiday, which invalidates the specified timeline and compliance window outlined in the document. As such, please disregard the formal escalation and any associated deadlines.

However, at your discretion, you may still use the information provided to correct the incident and implement any necessary remedial actions, as the underlying concerns remain relevant.

I apologize for any inconvenience this may cause and appreciate your understanding.

Should you require further clarification or discussion, please let me know.

Respectfully,

Accountability Notice:

>This retraction does not waive any statutory, professional, or ethical duties and is issued in good faith to ensure procedural accuracy.

[Quoted text hidden]

Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>
To: Wilbur William Matthee <wilburmat@gmail.com>

Thu, 18 Dec 2025 at 10:57

Dear Wilbur, can I please ask you to stop sending these e-mails to our directors? They've seen your first batch of e-mails and are aware that management is attending to them. Sending further e-mails only gives them an indication of impatience and unreasonableness on your part, and that does not serve you well.

Regards,



Monwabisi Kula
Chief Risk Officer

Office: +27 11 671 6447 | Mobile: +27 72 690 2140

Monwabisi.Kula@afrocentrichealth.com

37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709

www.afrocentric.za.com

From: Wilbur William Matthee <wilburmat@gmail.com>

Sent: Wednesday, December 17, 2025 8:23 AM

To: Nkateko Munisi <munisinf@global.co.za>; Alice le Roux <alice@aliceleroux.co.za>; Bruno Fernandes <ferfam.bruno@gmail.com>

Cc: Lebohang Mpumlwana <Lebohang.Mpumlwana@Afrocentrichealth.com>; Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>; Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>

Subject: Re: MAXIMUM SEVERITY GRC ESCALATION – Documented Retaliation, Suppression of Investigative Findings, and Governance Failure in Case [GEMS 000655789 Dependent 02]]

This message originated from outside your organization

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For more information please visit <http://www.mimecast.com>

Wilbur William Matthee <wilburmat@gmail.com>
To: Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>

Thu, 18 Dec 2025 at 10:57

Dear Chief Risk Officer Monwabisi Kula,

Thank you for your email dated [18 Dec 2025].

I acknowledge your request. However, I must respectfully decline to cease communication with the Board's oversight committees regarding this matter.

My communications to the Social & Ethics Committee and the Risk Committee constitute formal escalations of a Priority 1 Material Risk Report, as defined in the attached dossier submitted on 9 December 2025. The issues raised involve serious allegations of discrimination, retaliation, unlawful conduct, and systemic governance failures, which fall directly within the fiduciary and statutory mandates of these committees.

The suggestion that follow-up communication indicates "impatience and unreasonableness" is noted. My follow-ups are a direct consequence of a documented 30+ day institutional silence on formal grievances, the de-escalation of a protected disclosure back to the source of the complaint, and the absence of any substantive acknowledgment or action plan from the executive leadership or the board committees themselves.

Given the severe and ongoing personal, financial, and psychological harm documented, along with the material legal, reputational, and operational risks to the organization, continued oversight and a timely, independent response from the highest level of governance are not only reasonable but required.

I trust the relevant committees will exercise their independent judgment in reviewing the evidence and determining the appropriate course of action, irrespective of the volume of correspondence.

I will continue to copy the relevant committee chairs and the Company Secretary on material updates pertaining to this risk report, as is my right and responsibility as the whistleblower.

Sincerely,

Wilbur Matthee
Specialist Nurse
PGDipHealthServicesManagementBTech General Nursing (Psychiatry, Midwifery & Community Health)

Promotes ethical leadership, governance integrity, and psychosocial safety in organisations.This correspondence may contain confidential or legally relevant information intended only for the recipient. Unauthorised use or disclosure is prohibited.

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2 attachments

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5 KB

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17 KB